

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE**

QORVO, INC.,	)	
	)	C.A. No. 21-1417-JPM
Plaintiff,	)	
	)	
v.	)	
	)	
AKOUSTIS TECHNOLOGIES, INC. and	)	
AKOUSTIS, INC.,	)	
	)	
Defendants.	)	

**STIPULATED LIMITING INSTRUCTIONS TO THE JURY IN CONNECTION WITH
THE AKOUSTIS DEFENDANTS’ MOTION IN LIMINE NOS. 1 AND 4**

WHEREAS, the Court issued its Order on Motions in limine (the “Order”) on April 26, 2024 (D.I. 548), defendants Akoustis Technologies, Inc. and Akoustis, Inc. (“Akoustis”) to submit to the Court limiting instructions regarding Akoustis’ Motion in Limine Nos. 1 (D.I. 530-10 at PageID 25788-90) and 4 (*id.* at PageID 25798-801) on May 1, 2024 (D.I. 548 at 14);

WHEREAS, Akoustis prepared limiting instructions for Motions in Limine Nos. 1 and 4 and provided the limiting instructions to plaintiff Qorvo Inc. to alleviate burdening the Court with a dispute regarding the instructions;

WHEREAS, the parties have met and conferred regarding the limiting instructions;

WHEREAS, on May 1, 2023 the parties filed a Stipulation and [Proposed] Order seeking an extension of time through and including May 2 for Akoustis to submit its proposed limiting instructions;

And WHEREAS, the parties have reached agreement on the text for the limiting instructions,

IT THEREFORE IS HEREBY STIPULATED AND AGREED, by and through the undersigned counsel, and subject to the Court's consideration and approval, that for purposes of avoiding juror confusion, the Court should issue the limiting instructions below to the jury at trial:

1. Proposed limiting instruction regarding evidence that “Akoustis stole nearly 500,000 Qorvo documents” and “279 GB of additional information” (Akoustis MIL No. 1)

You may hear evidence that a forensic analysis of certain Akoustis devices or systems and/or personal devices of Akoustis employees contained a large number of documents and additional data allegedly created at Qorvo. The quantity of documents and data referred to by Qorvo does not establish that those documents contained confidential information or trade secrets or that they were used.

2. Proposed limiting instruction regarding the inadvertent reformatting of two Akoustis employees' laptop computers (Akoustis MIL No. 4)

You may hear evidence from Qorvo that Akoustis deleted the information stored on the laptop computers of two Akoustis employees after the employees left the company. That evidence is before you for the limited purpose of understanding why the contents of those two laptops are unavailable. The Court has determined that Akoustis did not act willfully, maliciously or in bad faith in deleting the data from the laptops.

Dated: May 2, 2024

MORRIS, NICHOLS, ARSHT & TUNNELL LLP

/s/ Jeremy A. Tigan

Jack B. Blumenfeld (#1014)
Jeremy A. Tigan (#5239)
Anthony D. Raucci (#5948)
1201 North Market Street
P.O. Box 1347
Wilmington, DE 19899
(302) 658-9200
jblumenfeld@morrisnichols.com
jtigan@morrisnichols.com
araucci@morrisnichols.com

Attorneys for Plaintiff

BAYARD, P.A.

/s/ Ronald P. Golden III

Stephen B. Brauerman (#4952)
Ronald P. Golden III (#6254)
600 North King Street, Suite 400
Wilmington, DE 19801
(302) 655-5000
sbraerman@bayardlaw.com
rgolden@bayardlaw.com

Attorneys for Defendants